

STATE OF NEW YORK SUPREME COURT
COUNTY OF NEW YORK

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IAN REISNER,

Plaintiff,

Index No.:

-against-

MAUREEN LUPO,

Defendant.

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**AFFIRMATION OF IAN REISNER IN SUPPORT OF IMMEDIATE EMERGENT
RELIEF REQUESTING AN OTSC FOR DECLATORY RELIEF AND RESTRAINING
ORDER AGAINST MAUREEN LUPO BASED ON A FRAUDULENT LEASE, ILLEGAL
VIOLATIONS AND COVERSION OF FUNDS AT 510W 42ND STREET**

STATE OF NEW YORK

COUNTY OF NEW YORK

I, Ian Reisner, affirm under penalties of perjury under the laws of the State of New York that the following is true and correct:

1. I am the Master Lease Holder for the property located at 510W 42nd Street (the “Property”) in New York City, New York. The Property is a mixed-use facility that serves as a hotel, entertainment venue, and event space catering to a diverse clientele. I have been the master leaseholder since March 2024.

2. I am also a real estate developer and co-founder of Parkview Developers, focusing on residential and commercial properties in New York City. I also have experience in hospitality management, including projects such as The Out NYC and developments on Fire Island Pines.

3. This affirmation supports the relief requested herein and the unauthorized activities of Ms. Maureen Lupo at the Property between June and December 2024.

Lupo's Efforts to Obtain a Lease

4. Ms. Lupo began discussions to secure a lease for the event/club space at the Property in June 2024. Several lease drafts were prepared and circulated, including a draft sent by Mr. Magnus Hagen on October 3, 2024 which outlines a 90-day lease (see Exhibit 1 – Email of Maureen receiving received term sheet; see also Exhibit 2 – Email re security deposit and insurance).

5. Despite extensive discussions, no valid lease was ever finalized or signed by Ms. Lupo. (See Exhibit 3 - Email from Lemmerman x Lupo Multiple Emails).

6. As shown in emails exchanged in October 2024, Ms. Lupo was reluctant to comply with conditions such as providing proof of insurance and security deposits required for the lease. (See Exhibit 4 – Emails Showing Lupo's Reluctance; see also Exhibit 5 – Email showing Ian demanded from Lupo proof of insurance as a condition; see also Exhibit 3).

7. She falsely asserted ownership over the lease despite her failure to meet the obligations set forth by the Master Lease Holder.

8. Despite repeated requests from me and the management team, Ms. Lupo refused to provide documentation for key requirements, such as proof of insurance and security deposits necessary for lease execution. (See Exhibit 4).

9. Instead, she made assertions claiming ownership over the lease while refusing to comply with established conditions. In one instance, Ms. Lupo dismissed concerns about her investors and financial obligations, stating that her investment and business decisions were her own and not subject to oversight. (See *id.*).

10. This baseless assertion, along with her disregard for hotel operations, including cleaning costs and staff utilization, created significant operational and financial burdens for the Property.

Unauthorized Uses of the Property

11. Ms. Lupo hosted numerous illegal events at the Property without authorization, including a Halloween Party on Thursday, October 31, 2024, an unauthorized party taken place on November 8, 2024 that escalated into a physical altercation, requiring police intervention, and an illegal Event on Monday, December 9, 2024, which event resulted in a very serious physical altercation on the Property, leading to bodily injury.

12. On November 8, 2024, Ms. Lupo organized an unauthorized event at the Property that led to significant disturbances and required police intervention. (See Exhibit 14 – Email from Lemmerman re Weekend of Nov 7,8,9 Club Activities).

13. This event, held without proper authorization, involved excessively loud music and other disruptive activities that caused noise complaints from neighbors and disrupted hotel operations. (See Exhibit 6 – Email Re_ NOISE COMPLAINTS, THUGGERY, Master Keys, SLA investigation etc.).

14. I was informed by Jeremy Broderick, the property's general manager, that hotel guests at the Property demanded refunds after the incident due to the intolerable disturbances, which also subjected the property to heightened community scrutiny. (See Exhibit 7 – Email re Master Keys, SLA investigation and selling an equity stake.).

15. Furthermore, unauthorized use of fog machines triggered fire alarms, escalating the situation and requiring intervention by the authorities. (See *id.*; see also Exhibit 6).

16. In the morning of December 9, 2024, an illegal event organized under Ms. Lupo's control resulted in a tragic and violent incident where an individual was shot in the head. This incident, documented in a police report, underscores the severe risks associated with Ms. Lupo's reckless and negligent management of the Property. (See Exhibit 8 – Investigation Report).

17. Under her supervision, an individual gained access to the club with a loaded firearm, which was subsequently used to shoot another guest. (See *id.*). This grave breach of safety protocols highlights the dangers posed by Ms. Lupo's continued operation of events at the Property.

18. During these events, Ms. Lupo operated with gross disregard for safety and compliance. She bypassed proper protocols by using her own point-of-sale terminals to evade sales tax reporting, and she permitted weapons, including firearms, into the venue (See *id.*).

19. Her conduct demonstrated a consistent pattern of neglecting responsibilities and undermining the management's efforts to ensure compliance and accountability.

20. My staff and I made repeated efforts to resolve the situation, including offering Ms. Lupo compensation or settlements to vacate the Property (see Exhibit 9 – Formal Notice to Maureen Lupo) and issuing communications emphasizing her lack of legal authorization and requesting her departure.

21. She was explicitly warned against showing up for unauthorized parties, violating permits, and operating the nightclub unlawfully, including instances of underage access and violations of SLA regulations (see Exhibit 3; see also Exhibit 10 – Email from Paul Brown).

22. Despite these efforts, Ms. Lupo continued her unlawful activities, disregarding all formal and informal warnings.

Forgery of Lease Document

23. The October incident led my team to believe that a change of lock to the Property is necessary to prevent Ms. Lupo from conducting further unauthorized and illegal activities.

24. On November 6, 2024, Richard Lemmerman, my co-investor of the Property, arranged the change of lock at the entertainment space. (Exhibit 11 – Mr Locks Invoice).

25. In the morning of November 11, 2024, Ms. Lupo, having been locked out due to a changed lock, presented a falsified term sheet document bearing my signature to the police officer, alleging the document as a lease. (See Exhibit 3 – Email from Lemmerman x Lupo Multiple Emails; see also Exhibit 12 – “term sheet bearing Ian’s signature”).

26. I do not recognize the signature on this “term sheet” as my own.

27. Ms. Lupo knowingly used this forged document to mislead police authorities and assert her unauthorized presence at the Property.

28. Despite Mr. Lemmerman, through his attorney Nick Kaiser, attempting to explain to the NYPD officer from the 10th Precinct that the “term sheet” Ms. Lupo presented is not equivalent to a lease, the officer informed us that they could not make an immediate decision and instructed us to return the keys to Ms. Lupo. (See Exhibit 3).

Impact of Ms. Lupo’s Actions

29. Ms. Lupo’s actions have caused significant disruption, including reputational damage due to disturbances, multiple police interventions, safety concerns arising from her events, as well as financial losses resulting from the inability to lease the space to other qualified and responsible tenants.

30. An estimated \$1,698,000 in unlawfully obtained revenue was generated during her unauthorized occupancy, none of which was shared with the landlord, as would be required under a valid lease agreement. (See Exhibit 13 – Illegal Revenue Overview).

Interference with Prospective Business Negotiations

31. Ms. Lupo has directly interfered with my ongoing negotiations with Richard Born, the master landlord of the Property, regarding the extension of my lease and the potential purchase of the Property. (See Exhibit 15).

32. She has repeatedly threatened, through text messages and phone calls, to contact Mr. Born and disparage me in an effort to secure a deal for herself and her associates from the TAO Group. (See *id.*).

33. Her actions are not only baseless but also calculated to harm my credibility and jeopardize these critical negotiations, which are vital to my business interests.

Request for Immediate Legal Action

34. I hereby respectfully but strongly request that this affirmation be entered as evidence and that the court take immediate legal action against Ms. Maureen Lupo to (1) permanently enjoin Ms. Lupo from accessing or using the Property and (2) seek remedies for damages caused by her unauthorized actions.

35. As shown herein, this request is urgent due to the clear danger posed by Ms. Lupo's continued occupation, as her actions have shown blatant disregard for health and safety, leading to serious situations requiring police intervention.

36. Ms. Lupo has repeatedly jeopardized public safety by misleading law enforcement with a forged lease, hosting poorly secured events without necessary permits, and allowing firearms on the Property, as evidenced by the December 9, 2024, incidents.

37. These events quickly escalated into violent situations, including a guest being injured by a loaded firearm brought into the club.

38. Her blatant disregard for safety regulations and failure to ensure proper security create an environment where serious harm is not only possible but inevitable, posing a grave and imminent danger to attendees and the surrounding community.

39. It is difficult to imagine a more serious incident, but the continued lack of oversight raises the risk of future events escalating into even greater harm, potentially involving multiple victims.

40. As the Master Lease Holder, I am effectively powerless to take further action as the NYPD is refusing to remove her from the property.

41. Despite repeated efforts to remove Ms. Lupo and protect the Property, her persistent hold and the use of a forged lease document have rendered me unable to act effectively.

42. This has led to serious financial losses for me and has created an ongoing threat to public safety.

43. I urgently request the court's immediate intervention to remove Ms. Lupo from the Property and prevent further harm.

44. Allowing her to continue her unlawful activities, supported by a forged document, poses an unacceptable risk of serious accidents.

45. This is the first request for emergent relief, and decisive action is needed to protect the safety and integrity of the Property and its rightful operations.

I affirm this 10 day of Jan, 2025 under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.


Ian Reisner